
Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

7 messages

AshLe' Penn <ashlepenn.ap3@gmail.com>

Fri, May 15, 2026 at 1:25 PM

To: Sonya.Faulkner@odhs.oregon.gov

Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <Skye.F.Hopkins@odhs.oregon.gov>

Greetings Ms. Faulkner et al.,

I write to address ODHS's characterization of my conduct in the May 2026 Safety Plan and the agency's effort to proceed without identifying any specific conduct that creates a current risk of harm sufficient to justify my daughter Al-Mira Davis's placement outside my home.

Even assuming ODHS could characterize my decision as a refusal of access, that characterization cannot be reconciled with the agency's obligation to recognize a parent's right to decline voluntary surveillance and state intrusion into the privacy of the home absent lawful process. More importantly, ODHS has not identified any specific conduct by me that establishes a current risk of harm, nor has it explained any nexus between any alleged concern and a concrete safety threat. A lawful refusal of voluntary access is not, standing alone, a safety failure.

ODHS also cannot convert a requested home visit, which it has not specifically requested of me, into a substitute for judicial authorization. Oregon's dependency framework is court-centered: if the agency seeks compelled access, compelled services, or other coercive relief, it must proceed through the juvenile court with proper notice and service.

Notwithstanding what appears to be retaliation for the exercise of protected rights, the statements in the safety plan are inflammatory and false. They do not accurately reflect my recent and plainly cooperative participation in a two-hour in-home interview of my children. ODHS has had substantial engagement with my family over the last five to six years, and it has not identified any conduct by me that undermines my fitness as a parent.

Please take notice of the attached letter for further response.

Regards,
AshLe' Penn
Mother of Al-Mira Davis
424.242.3374

**Safety Plan Follow Up.pdf**

251K

AshLe' Penn <ashlepenn.ap3@gmail.com>

Fri, May 15, 2026 at 6:59 PM

To: Helpless inlove <helplessinlove242@gmail.com>

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com>

Fri, May 15, 2026 at 7:14 PM

To: Helpless inlove <helplessinlove242@gmail.com>

[Quoted text hidden]

**Safety Plan Follow Up.pdf**

251K

FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>

Tue, Jun 2, 2026 at 10:33 AM

To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Good morning AshLe'

At this time, your lack of engagement in the process is limiting the ability to make progress toward the reunification of your child into your home. Your decision to decline access to yourself and your home, along with your refusal to participate fully in the court process, limits ODHS's ability to assess your functioning, protective capacities, and whether your home is now safe for your child. Your engagement is necessary for ODHS to evaluate progress toward reunification.

During our recent call, we discussed your willingness and ability to engage in case planning and the court process. You requested that I obtain a copy of the shelter hearing transcript or recording so I could review it and respond to your concerns. I am currently working to obtain access; however, I cannot guarantee the court will permit its release. This request is separate from the steps you need to take to achieve case goals. My understanding is that you have now received case planning documents to help guide and answer questions related to your daughter's reunification with a parent.

I remain willing to meet with you to discuss the case, hear your questions, and ensure you have what you need to work toward reunification. Your participation is essential, and I want to ensure you can engage in a meaningful way. **We can proceed with the meeting today, June 2nd at 4:00 p.m.**, but the focus will need to be specifically on how we move forward with the steps required for reunification.

You are encouraged to contact an attorney or request court-appointed counsel if you do not currently have one. Concerns related to the conduct of ODHS staff can be addressed through the appropriate internal processes; these matters remain private and are separate from the requirements of your child welfare case.

Please let me know if you would like to meet today.

Thanks,

Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

503-559-0544



From: AshLe' Penn <ashlepenn.ap3@gmail.com>

Sent: Friday, May 15, 2026 1:25 PM

To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>

Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>

Subject: Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

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[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com>

Tue, Jun 2, 2026 at 2:27 PM

To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>

Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Ms. Faulkner,

Please find my response to your email of this morning attached. I will be available at 4:00 PM as you proposed. Please review the attached letter in advance of that call.

Regards,

AshLe' Penn



Penn_Faulkner_Reply_25JU04261_20260602.pdf

20K

FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>

Tue, Jun 2, 2026 at 3:19 PM

To: AshLe' Penn <ashlepenn.ap3@gmail.com>

Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

Thank you for the clarifying question AshLe, which is your sole purpose of meeting today, given that you have one question I am answering via email rather than a phone call later today. Given the history of our previous phone interactions, I want to make sure that I have the opportunity to fully answer without interruption.

Here is the answer to your question:

What conduct allows ODHS to evaluate you?

I want to provide a clear explanation based on Oregon law and child welfare rules, now that your case is open and the court has taken jurisdiction.

Once the juvenile court found jurisdiction, ODHS became legally responsible for assessing safety, monitoring progress, and supporting the plan the court has ordered. This authority does not come from any new or specific conduct on your part, it comes directly from the court's jurisdictional finding.

Under Oregon statutes and ODHS rules, when a child is in foster care and the court has jurisdiction:

- ODHS is required to complete and update family assessments.
- ODHS is required to meet with parents, review safety concerns, and monitor progress.
- ODHS is required to have regular contact with you and your child.
- ODHS must evaluate whether safety threats have been addressed and whether reunification can safely occur.

These duties come from Oregon law **ORS 419B** and **ORS 409.185**, as well as ODHS rules including **OAR 413-015** (CPS assessment rules) and **OAR 413-080** (ongoing case and monthly contact requirements).

Because jurisdiction has been established by the court, ODHS has the legal authority and the obligation to evaluate your situation as part of ensuring your child's safety and moving the case toward a permanent plan.

Moving forward please work with Skye and David on next steps, they are the experts on your case. **I am canceling our call for today.**

Thanks,

Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

503-559-0544



From: AshLe' Penn <ashlepenn.ap3@gmail.com>

Sent: Tuesday, June 2, 2026 2:28 PM

To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>

Cc: Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>; Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>

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Ms. Faulkner,

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com>
To: Brittney Horsley <bhorsleycpht@gmail.com>

Tue, Jul 14, 2026 at 5:09 PM

Forwarded Conversation

Subject: Re: May 2026 Safety Plan – Objection to Factual Misstatement on Home Access and Authority to Proceed Without Judicial Authorization

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3 attachments



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